the information of Parties and Member States. The Interim Guidance also contains a number of appendices which may be helpful.

It is the prerogative of each ratifying Party to implement the requirements of the Agreement in accordance with its own national legal framework as well as the operational arrangements applicable within its jurisdiction.

PART A INTERIM GUIDANCE FOR IMPLEMENTATION

SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the
---
SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (hereinafter referred to as "the Agreement "), is the only internationally updated and binding instrument that addresses the design, construction and equipment of fishing vessels. It is recognized that the entry into force and implementation of the Agreement would make a significant contribution to the safety of ships in general and the safety of fishing vessels in particular.

1.1.2 The Interim Guidance aims to assist Parties and Member States in effectively implementing the provisions of the Agreement into their national laws, regulations and other measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines
---
SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines

on part B of the Code, the Voluntary Guidelines and the Safety Recommendations provide guidance related to administrative requirements and legal implications, respectively, which may also be useful to Administrations when developing their own laws and regulations or other measures for the safety of fishing vessels, including those related to the implementation of the Agreement. Furthermore, part B of the Code of Safety for Fishermen and Fishing Vessels , 2005 Edition would serve as a guide for Administrations in developing provisions for vessels of 24 metres in length and over but less than the length limit prescribed in chapters IV, V, VII and IX of the Agreement, as called for in paragraphs (4) and (5) of article 3 of the 1993 Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in
---
SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in the implementation of the provisions of the Agreement. It is therefore expected that Member States which are planning to deposit an instrument of ratification, acceptance, approval or accession, as appropriate, of the Agreement could benefit from this Interim Guidance.

1 The Interim Guidance may be applied in recognition of the broader international duties and obligations of Parties, Member States and flag States regarding the flagging and control of fishing vessels, together with their responsibilities to manage fishing and fishing -related activities in a manner that ensures the conservation and sustainable use of living marine resources and ensuring decent onboard working and living conditions for fishing vessel personnel. Parties, Member States and flag States may, in this regard, be guided by the following instruments, inter alia:

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
guided by the following instruments, inter alia:

.1 ILO's Guidelines on flag State inspection of working and living conditions on board fishing vessels;

.2 FAO Code of conduct for responsible fisheries (article 8 fishing operations);

.3 FAO Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing (PSMA);

.4 FAO Voluntary guidelines for flag state performance of 2014;

.5 FAO/ILO/IMO Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations;

.6 FAO/ILO/IMO Code of Safety for Fishermen and Fishing Vessels, part B; and

.7 FAO Technical guidelines on best practices to improve safety at sea in the fisheries sector.
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 7

I:\MSC\109\WP\MSC 109-22-Add.2.docx

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 7

I:\MSC\109\WP\MSC 109-22-Add.2.docx
1.2.2 The Interim Guidance highlights the benefits of ratification or accession, as appropriate, and the flexible mechanism established for implementation, in particular on existing fishing vessels.

1.2.3 The Interim Guidance also provides useful information to stakeholders in the industry, such as fishing vessel owners, fishing vessel personnel, shipyards and equipment manufacturers, on how to comply with the requirements set forth in the Agreement. It also addresses other relevant issues, such as the human element and the guiding principles of the III Code.

1.2.4 Parties and Member States which already have a higher standard than prescribed in the Agreement, because they have implemented the provisions of the 1993 Torremolinos Protocol or a regional agreement for example, should not lower their standards when
---
SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
Protocol or a regional agreement for example, should not lower their standards when
implementing the provisions of the Agreement. They should ensure that they do not take any actions which may inadvertently undermine their pre-existing higher standards.

1.3 Scope

1.3.1 The Interim Guidance provides a clear distinction between the technical requirements applicable to new and those applicable to existing vessels.

1.3.2 The Agreement offers a wide range of flexibility in terms of implementation and application. The Interim Guidance provides information on available flexibility options for both new and existing fishing vessels, and, in particular, on options that are related to progressive implementation of provisions on existing fishing vessels.

1.3.3 This Interim Guidance covers areas like definitions, interpretation and application of the articles of the Agreement and the 1993 Torremolinos Protocol as well as application,
---

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
the articles of the Agreement and the 1993 Torremolinos Protocol as well as application, exemptions, equivalents, surveys and certificates. There is a dedicated appendix dealing with the system of survey and certification, based on the structure of the Survey guidelines under the harmonized system of survey and certification (HSSC) , 2023, adopted by resolution A.1186(33). It is noted that the Agreement is currently not a relevant instrument of the HSSC.

1.3.4 Summary assistance tables for implementation have been inserted at the end of each section of part A and at the end of section 8 of part B of the Interim Guidance with the aim of facilitating the implementation of the Agreement. For reference, the responsibilities under the capacities as flag, port or coastal States in relation to the relevant provisions have been included. In addition, other supportive tools have been included for interest and assistance.

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
included. In addition, other supportive tools have been included for interest and assistance.

1.3.5 The Interim Guidance provides information regarding some of the benefits of ratification, acceptance, approval or accession, as appropriate, and implementation of the Agreement. This includes the expected reduction of accidents and in particular collisions within the waters of the flag State, the reduction of potential costs of search and rescue operations and pollution risks, with a positive impact on the national economy, resources and the environment.

1.3.6 Additionally, to assist Parties, Member States and stakeholders in the industry, the appendices provide guidelines for flag States, including abandon ship training and drills, radio equipment, shipborne navigational equipment, fire -fighting measures and life -saving appliances summary tables.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE